

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA**

**Tentative Ruling**

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**2026CUOE064674: DAJONAE JACKSON vs DIGNITY HEALTH, et al.  
07/08/2026 in Department 42  
Demurrer**

**Motion:** Defendant Dignity Health’s Demurrer to Complaint (*unopposed*)

**Tentative Ruling:**

The Court intends to OVERRULE Defendant Dignity Health’s Demurrer to Fifth and Sixth causes of action, and SUSTAIN, with leave to amend, the Demurrer to the Seventh, Eighth, and Ninth causes of action.

**Background:**

Plaintiff filed a Complaint on April 15, 2026, alleging the following nine causes of action; 1) Harassment Based on Race (Cal. Gov. Code § 12940(j)); 2) Harassment Based on Sex/Gender (Cal. Gov. Code § 12940(j)); 3) Retaliation (Cal. Gov. Code § 12940(h)); 4) Failure to Prevent Discrimination, Harassment, and Retaliation (Cal. Gov. Code § 12940(k)); 5) Breach of Contract; 6) Breach of Implied Covenant of Good Faith and Fair Dealing; 7) Intentional Infliction of Emotional Distress; 8) Disability Discrimination in Violation of Public Policy (CA Gov. Code § 12940 et. seq. and the FEHA); 9) Failure to Accommodate a Temporary Disability (CA Gov. Code § 12940 et seq. and the FEHA).

**Discussion:**

A. Standard for Demurrer for Failure to State a Claim

A demurrer tests the legal sufficiency of a complaint by raising issues of law, not fact. (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420; *Plumlee v. Poag* (1984) 150 Cal.App.3d 541, 545.) It challenges only defects apparent on the face of the pleading or from matters subject to judicial notice. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; Code Civ. Proc., § 430.10.) The question is whether the complaint states a valid cause of action, not whether the plaintiff can ultimately prove the allegations. (*Highlanders, Inc. v. Olsan* (1978) 77 Cal.App.3d 690, 697; *Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 609–610.)

To withstand a demurrer, a complaint must allege specific facts supporting each element of the cause of action. While only “ultimate” rather than “evidentiary” facts are required (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), the pleading must still set forth essential facts with reasonable precision and particularity to apprise the defendant of the nature, source, and extent of the claims. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099; *Gressley v. Williams* (1961) 193 Cal.App.2d 636, 643–644.)

In ruling on a demurrer, the court assumes the truth of all properly pleaded material facts but need not accept legal conclusions, contentions, or deductions. (*Blank, supra*, 39 Cal.3d at p. 318; *Daar*

*v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.) The court may also consider matters subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a); *Stormedia Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9.)

The complaint is construed liberally, and reasonable inferences are drawn from its factual allegations. (*Rodas v. Spiegel* (2001) 87 Cal.App.4th 513, 517.) Liberal construction, however, does not excuse the failure to plead essential facts clearly. (*Semole v. Sansoucie* (1972) 28 Cal.App.3d 714.) Ultimately, a complaint need only allege facts sufficient to state a cause of action; evidentiary detail is unnecessary. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) This liberal standard is applied with particular care when a demurrer is sustained without leave to amend. (*Glaire v. LaLanne-Paris Health Spa, Inc.* (1974) 12 Cal.3d 915, 918.)

## B. Application

### 1. Fifth and Sixth Causes of Action

A breach of contract claim requires allegations showing existence of the contract; plaintiff's performance (or excuse for nonperformance); defendant's breach; and damages to plaintiff as a result of the breach. Moreover, there is a Labor Code presumption, absent a contract, that employees are at-will and can be terminated for any reason. (Labor Code §2922.) As stated in *Schachter v. Citigroup, Inc.* (2009) 47 Cal. 4th 610, 619-622, emphasis added:

“[I]t is settled that an employer may unilaterally alter the terms of an employment agreement, provided such alteration does not run afoul of the Labor Code. (*DiGiacinto v. Ameriko-Omserv Corp.* (1997) 59 Cal.App.4th 629, 637 [69 Cal. Rptr. 2d 300] (DiGiacinto); see 3 Witkin, Summary of Cal. Law (10th ed. 2005) Agency and Employment, § 236 [unilateral reduction in wage].) ‘There is, of course, a strong common law presumption that an employee may be demoted at will. Since it is presumed that an employee may be discharged at will (Lab. Code, § 2922), the at-will presumption would surely apply to lesser quant[a] of discipline as well.’ (*Scott v. Pacific Gas & Electric Co.* (1995) 11 Cal.4th 454, 464–465 [46 Cal. Rptr. 2d 427, 904 P.2d 834]; see *DiGiacinto, supra*, 59 Cal.App.4th at pp. 634–635.) The at-will presumption authorizing an employer to discharge or demote an employee similarly and necessarily authorizes an employer to unilaterally alter the terms of employment, provided that the alteration does not violate a statute or breach an implied or express contractual agreement. (*Scott v. Pacific Gas & Electric Co., supra*, 11 Cal.4th at p. 465; *DiGiacinto, supra*, 59 Cal.App.4th at p. 637.) An ‘**employee who continues in the employ of the employer after the employer has given notice of changed terms or conditions of employment has accepted the changed terms and conditions.**’ (*DiGiacinto, supra*, 59 Cal.App.4th at p. 637.)

“It cannot be questioned that employers and employees are free to prospectively and bilaterally alter the terms of employment. As we recently noted, ‘ “[s]traight-

time wages (above the minimum wage) are a matter of private contract between the employer and employee.” ’ [Citations.] ... [¶¶]

Here, the allegation is that Plaintiff was moved from “Nursing Administrator Supervisor Per Diem” to “Part-Time RN Administrative Supervisor” as of April 16, 2023 for annual compensation of \$137,889.27. (Complaint at ¶ 1.) However, on November 28, 2023, Defendants said the initial offer letter dated March 10, 2024, was incorrect (Complaint at ¶ 20), and lowered the annual compensation substantially, down to \$91,926.18. (Complaint at ¶¶ 4, 40).

While the arguments and defenses raised by Defendant may be meritorious, they are not properly resolved on a pleading challenge, and many rely on evidence outside of the four corners of the complaint and for which no request for judicial notice has been sought. For example, there is no support cited in the Complaint for Defendant’s claim that there “was no written contract for employment.” The allegations contained in ¶¶ 88-95 of the Complaint are sufficient on their face to state a claim, given the holding in *Agosta v. Astor* (2004) 120 Cal. App. 4th 596, which just requires that an employer induce an employee to accept employment with specific compensation terms, which is what the Complaint alleges. The issue of compensable damages is not properly decided on demurrer, and Defendant can make those factual arguments at the appropriate time. Likewise, the arguments about “mistake of fact” affirmative defense based on the allegation in the Complaint at ¶40 are not appropriate now; moreover, there is a six-month period of time between the offer and effective date of the new position, and the date alleged in Complaint at ¶40 regarding Michael Sloan’s memorandum. Thus, even if the defense applies, it does not cover the entire period at issue.

Accordingly, the Court OVERRULES the demurrer to the Fifth Cause of Action for breach of contract.

For the same reason that the breach of contract demurrer should be overruled, the Sixth Cause of Action for breach of covenant of good faith and fair dealing is OVERRULED. The claim does not simply assert termination, but instead alleges that Defendant failed to honor the compensation terms set forth in the offer letter, ignored and closed her payroll complaints without resolution, delayed and stonewalled her repeated attempts to secure the agreed compensation, and presented her with the choice of remaining at the lower compensation or returning to per diem status and losing benefits. (Complaint at ¶ 101.) The demurrer fails to persuasively argue that those claims are insufficient to state a cause of action.

## 2. Seventh Cause of Action

An essential element of a cause of action for intentional infliction of emotional distress (IIED) is "extreme and outrageous conduct," which is conduct "so extreme as to exceed all bounds of that usually tolerated in a civilized community." (See, e.g., *Davidson v. City of Westminster* (1982) 32 Cal.3d 197, 209.) As a matter of law, ordinary personnel management decisions, even if improperly motivated or intentionally carried out, do not constitute the type of extreme and outrageous conduct necessary to support an IIED claim. (See, e.g., *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80.)

Although some authority recognizes that sufficiently severe or pervasive harassment under FEHA may constitute extreme and outrageous conduct (see, e.g., *Murray v. Oceanside Unified School Dist.* (2000) 79 Cal.App.4th 1338, 1362–1363; *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1055; *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051), Plaintiff's allegations fall well short of that standard. The Complaint does not allege ultimate facts demonstrating conduct by Defendant or its supervisors that could reasonably be characterized as extreme and outrageous under *Murray*. Instead, Plaintiff alleges only that she was described as "emotional" because she is a "woman." (Complaint at ¶ 5.) Even accepting that allegation as true for purposes of this motion, an isolated comment of this nature is neither sufficiently severe nor pervasive to exceed all bounds of decency tolerated in a civilized society. The Complaint therefore fails to allege conduct capable of supporting a claim for intentional infliction of emotional distress.

Accordingly, the Court SUSTAINS the demurrer as to the Seventh Cause of Action. Leave to amend is granted because it is generally an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility the defect can be cured. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; see also *Leyva v. Nelson* (2000) 83 Cal.App.4th 1061, 1063.) Courts favor a liberal policy of granting leave to amend, especially where the plaintiff has not yet had a fair opportunity to correct the defect. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

### 3. Eighth and Ninth Causes of Action

These causes of action fail for the simple reason that no FEHA-qualifying disability is alleged in the Complaint. Accordingly, Plaintiff cannot allege that Defendant was aware of any disability, such that they could have discriminated against Plaintiff on that basis. Therefore, the Court SUSTAINS the demurrer with leave to amend as to the Eighth and Ninth Causes of Action.